

HOUSE No. 1257**The Commonwealth of Massachusetts**

PRESENTED BY:

Paul McMurtry and Brian W. Murray*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to ensuring treatment for genetic craniofacial conditions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/14/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/21/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/21/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/22/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/22/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/22/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/23/2025</i>
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>1/27/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/29/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>2/3/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>2/3/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/6/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>2/18/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/23/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/3/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>3/4/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>3/10/2025</i>

<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>3/10/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>6/4/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>6/30/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/7/2025</i>

HOUSE No. 1257

By Representatives McMurtry of Dedham and Murray of Milford, a petition (accompanied by bill, House, No. 1257) of Paul McMurtry, Steven Owens and others relative to health insurance coverage for treatment for genetic craniofacial conditions. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to ensuring treatment for genetic craniofacial conditions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17S the following section:-

3 Section 17T. Any coverage offered by the commission to an active or retired employee of
4 the commonwealth insured under the group insurance commission shall provide coverage for
5 medically necessary functional repair or restoration of craniofacial disorders, with the exception
6 of coverage for cleft lip and cleft palate which is prescribed under section 17J , to improve the
7 function of, or to approximate the normal appearance or any abnormal structures caused by
8 congenital disease or anomaly. Coverage under this section shall include the necessary care and
9 treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta.

10 Coverage under this section shall not include cosmetic surgery or for dental or orthodontic
11 treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not

be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the commission.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10Q the following section:-

Section 10R. The division shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate which is prescribed pursuant to section 10G, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or for dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the division.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting after section 47UU the following section:-

Section 47VV. Any blanket or general policy of insurance under section 110 that provides hospital expense and surgical expense insurance and which is delivered, issued or subsequently renewed by agreement between the insurer and the policyholder in or outside of the commonwealth and any employees' health and welfare fund that provides hospital expense and surgical expense benefits and which is delivered, issued or renewed to any person or group of persons in the commonwealth shall provide coverage for medically necessary functional repair

or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate which is prescribed under section 47BB, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the insurer.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8VV, the following section:-

Section 8WW. Any contract between a subscriber and the corporation under an individual or group hospital service plan which is delivered, issued or renewed within the commonwealth shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate which is prescribed pursuant to section 8EE of this section, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the insurer.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the insurer.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4NN the following section:-

Section 4OO. Any individual or group health maintenance contract shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate which is prescribed under section 4W of this chapter, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in

77 this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-
78 pocket limits than any other benefit provided by the insurer.

79 SECTION 7. Chapter 176I of the General Laws, as so appearing, is hereby amended by
80 inserting after section 13 the following section:-

81 Section 14 An organization entering into a preferred provider contract shall provide
82 coverage for medically necessary functional repair or restoration of craniofacial disorders; with
83 the exception of coverage for cleft lip and cleft palate which is prescribed under section 12 of
84 this chapter, to improve the function of, or to approximate the normal appearance of any
85 abnormal structures caused by congenital disease or anomaly. Coverage under this section shall
86 include the necessary care and treatment of medically diagnosed congenital disease or anomaly,
87 including, ectodermal dysplasia, dentinogenesis imperfecta, and amelogenesis imperfecta.
88 Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment
89 unrelated to congenital defects, developmental deformities, trauma, tumors, infections or disease.
90 The benefits in this section shall not be subject to any greater deductible, coinsurance,
91 copayments or out-of-pocket limits than any other benefit provided by the insurer.